

The Fergusson Affair: Calvinism and Dissimulation in the Scottish Enlightenment

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To what extent did the Scottish Enlightenment involve a rejection of Calvinism? The question has come into focus in recent decades as scholars began to appreciate that the mainstream of the Scottish Enlightenment existed *within* the Church of Scotland,¹ a church founded on the Westminster Confession of Faith of 1647. When the Presbyterian brand of Scots churchmanship was re-established in 1690 at the Revolution, the Calvinist Westminster Confession became its subordinate standard. If the Scottish Enlightenment – unlike the French, say – did not take the form of an adversary culture outside the church establishment, then how far did its champions compromise with prevailing religious norms? It is, of course, hard to believe that the remarkable achievements of eighteenth-century Scots in the fields of moral philosophy and jurisprudence, history and political economy, and aesthetics and belles-lettres, were products of a culture thirled to traditional Calvinist norms; and for that reason nobody within the academic world had until recently bothered even to ask the question.² Surely the matter of the Scottish Enlightenment departed significantly from Calvinist doctrine, to the point of offering – at the very least – an implicit rebuke to its stale and oppressive dogmas? Yet it seems the Scottish Enlightenment and, more

¹ See e.g. R. Sher, *Church and University in the Scottish Enlightenment* (Princeton and Edinburgh: Princeton University Press/Edinburgh University Press, 1985).

² C. Kidd, 'Scotland's Invisible Enlightenment: subscription and heterodoxy in the eighteenth-century Kirk', *Records of the Scottish Church History Society* 30 (2000), 28-59; Kidd, 'Subscription, the Kirk Establishment and the Moderate Interpretation of History', *Journal of Ecclesiastical History* 55:3 (2004), 502-19.

particularly, the Moderate party within the Kirk which upheld its values, were awkwardly entangled with Calvinist orthodoxy.

The legislation of 1690 binding the Kirk to a Calvinist confession was copperfastened by the Union of 1707. The Act for securing the Church of Scotland, which accompanied the Union, guaranteed that professors, principals, regents and masters or others bearing office in Scotland's universities or burgh and parochial schools were required to subscribe the Westminster Confession.³ The terms of clerical subscription became tighter in 1711, when, by an Act of the General Assembly, probationer ministers were obliged to own 'the whole doctrine' contained within the Westminster Confession prior to licensing, and ministers were asked at their ordination whether they sincerely owned and believed 'the whole doctrine contained in the Confession of Faith', and to confirm that that they did 'acknowledge the same as the confession of [their] faith'.⁴ By the same Act of Assembly ministers were also required to disown explicitly various other doctrines inconsistent with the Westminster Confession, including – specifically – Arian, Socinian and Arminian beliefs.⁵ It is hard for us to believe that the intellectual giants of the Scottish Enlightenment did not find themselves suffocated by such restrictions on their beliefs. Yet eighteenth-century Scots ministers and professors seem not to have chafed against the constrictions of this theological straitjacket. Whereas other parts of the Calvinist world, such as Switzerland and, closer to home, Ulster, witnessed clerical campaigns against confessional subscription during the age of Enlightenment,⁶ no such open movement surfaced in the Scottish Kirk during the eighteenth century. Does this mean

³ *Acts of the Parliaments of Scotland 1124-1707* (12 vols., Edinburgh, 1814-75), XI, 402-3, 413-14.

⁴ *Acts of the General Assembly 1638-1842* (Edinburgh, 1843), 453-6 (455).

⁵ *Ibid.*, 455.

⁶ L. Kirk, 'Eighteenth-century Geneva and a changing Calvinism', in *Religion and National Identity*, edited by S. Mews (Oxford, 1982), 367-80; I. McBride, *Scripture Politics: Ulster Presbyterians and Irish Radicalism in the Late Eighteenth Century* (Oxford: Oxford University Press, 1998).

that the Moderates in the eighteenth-century Kirk were scrupulously – indeed, complacently - Calvinist? Or were they, as some contemporary commentators believed, hypocritical deceivers, who perjured themselves for offices, stipends and manses?

Most famously, in his subversive and satirical account of Moderate churchmanship, *Ecclesiastical Characteristics* (1753), John Witherspoon (1723-94) poked fun at the latent creed of the Moderates. Witherspoon claimed that it was ‘a necessary part of the character of a moderate man never to speak of the Confession of Faith but with a sneer; to give sly hints that he does not thoroughly believe it’. Indeed, Witherspoon concocted a parody of the Moderate creed: ‘The Confession of Faith, which we now all laid under a disagreeable necessity to subscribe was framed in times of hot religious zeal; and therefore it can hardly be supposed to contain anything agreeable to our sentiments in these cool and refreshing days of moderation.’ As far as Witherspoon was concerned the Moderates were crypto-pagans, whose reverence for the virtuous philosophers of classical antiquity far outstripped their nominal adherence to the tenets of John Calvin.⁷ Did Moderate divinity stand at some remove from the theological positions Moderate ministers supposedly upheld at their admission to the ministry? What did the Moderates believe in the privacy of the closet?

Unhappily for our investigations, the Moderates tended to eschew theology in their publications for other areas of literature, philosophy and history, possibly in order to skirt around the embarrassing elephant in the room – the contradiction between their religious beliefs and the confession they purported to uphold. But were these paragons of truth and honest enquiry hypocrites in religion? Did they meekly

⁷ John Witherspoon, *Ecclesiastical Characteristics: or the Arcana of Church Policy* (1753) in *Works*, 9 vols (Edinburgh, 1804-5), VI, 162-3.

pander to the inherited doctrines of the Kirk without openly questioning them, or the mechanisms of subscription which underpinned their hold on Scottish church life? Such difficult questions of personal integrity are, perhaps, best answered not by considering the Kirk, or the Moderate party, as a whole, but by examining particular allegations of hypocrisy. The case of Alexander Fergusson, who served as minister of Kilwinning in Ayrshire for almost half a century, presents just such a window onto eighteenth-century evasions and deceptions, centring as it does on the very issue of clerical dissimulation when subscribing the Westminster Confession.

Not that the Reverend Alexander Fergusson was himself a *surreptitious* hypocrite. Despite his advocacy of a cynically loose approach to subscription, he was not, it appears, a man of ‘sly hints’. Rather in the ecclesiastical battles which marked the last dozen years of his life, Fergusson was outspoken in defence of a religion of love, kindness and hope far removed from the metaphysical horrors of the rigidly predestinarian Calvinism which Scots Presbyterians had inherited from their seventeenth-century forebears. A neglected figure in the history of the Scottish Enlightenment, Fergusson deserves to be better known as an opponent of hardline Calvinism and of an oppressively literal approach to clerical subscription. Nevertheless, the liberal lion of the late 1750s and 1760s had an unsavoury side to his character. Fergusson was also, as we shall see, a feisty and cantankerous old man, who showed little quarter to his adversaries, and proved sparing in his use of the charity which he so strenuously advocated.

Fergusson was born in 1689, the eldest son of William Fergusson of Auchinblair, the Sheriff-Depute of Ayrshire. Fergusson took an MA at the University

of Glasgow, and was licensed to preach by the Presbytery of Ayr on 31 March 1718. He preached at Kilwinning by permission of the patron, the Earl of Eglinton, but was not imposed on the parish. The parishioners, rather, were impressed by his preaching, and the patron gave his consent to Fergusson's appointment. He became minister of the parish on 14 March 1721, and married Katherine Watson, the eldest daughter of William Watson, an Edinburgh lawyer, 22 July 1725. The couple had one child, William, who was born on 30 March 1729, and who died while still a young man on 3 April 1751.⁸ As parish minister Fergusson was active in attending to the fabric and fittings of the church, and in maintaining good order and decorum within the town. However, Fergusson's practical turn and his concentrated focus on practicalities would, on at least one occasion, call into question his own sense of propriety. At the time of Fergusson's marriage, his father had disposed all his land to his eldest son, reserving only to himself a liferent of the estate. However, in 1737 the father's attempted sale of a small copse of wood on the estate for all of five pounds, saw the minister raise a court action to prevent this minor encroachment by an otherwise generous father on his son's patrimony.⁹ It is revealing, perhaps, that James Wodrow (1730-1810), the minister of the adjacent parish of Stevenston and a colleague otherwise sympathetic to Fergusson's theological outlook, privately referred to his neighbour by the nickname 'the Abbot of Kilwinning.'¹⁰

In time the spread of the Secession church, and its challenge to Fergusson's authoritarian monopoly within his parish would bring out the aggressive and

⁸ Biographical details are gathered from *Fasti Ecclesiae Scoticae*, edited by Hew Scott, 7 vols (Edinburgh: Oliver and Boyd, 1915-28), III, 117-18; and from W. L. Ker, *Kilwinning* (Kilwinning: A.W. Cross, 1900), 55-83.

⁹ Ker, *Kilwinning*, 62.

¹⁰ James Wodrow to Samuel Kenrick, 25 Jan. 1769, Wodrow-Kenrick correspondence (W-K), Dr. Williams's Library, London, MS 24. 157, W-K (45). However, the originals in Dr. Williams's Library are currently closed while Dr. Martin Fitzpatrick prepares his forthcoming edition of the correspondence. Nevertheless, Dr. Fitzpatrick kindly made available to me two letters from Wodrow which touch upon the Fergusson affair.

disputatious side of his personality. The Secession had originated in 1733 when the Reverend Ebenezer Erskine protested against the Kirk's accommodation with lay patronage – which had been imposed on the Kirk in 1712 by Act of the British Parliament, in apparent defiance of the Union and the spiritual prerogatives of the Church of Scotland. Erskine and three other evangelical ministers constituted themselves a separate presbytery outside the Kirk, though they believed strongly in the establishment principle. As the Secession spread from its original base around Stirling and Kinross it offered a traditionalist challenge to the establishment. Moreover, the Seceders did not only take a stand on patronage, but also denounced the defections of the established Church, including its betrayal of the seventeenth-century Covenants and its theological liberalism.¹¹

In 1759 the Seceders set up a church at the Greenside in Kilwinning,¹² and Fergusson was irritated by this intrusion upon the monopoly position he had enjoyed as minister of the parish since 1721. There was, moreover, a very particular provocation which moved him to action. On 22 April 1759 James Ellis, or Ellice, or Alice (d. 1798), the minister of a nearby Secessionist congregation, delivered a sermon accusing the Church of Scotland of Arianism, Deism and Arminianism.¹³ Fergusson was now incensed, and on 13 May read a warning from his pulpit in Kilwinning against the dangers of consorting with the schismatics of the Secession, advice which was soon published in pamphlet form as *A Warning relating to the present Schism in the Church of Scotland* (1759). There was no justification for the Seceders' separation from the established Kirk, contended Fergusson, for patronage - restored by the British parliament in 1712 in apparent breach of the Union, which was

¹¹ There is a succinct and authoritative account of the various provocations which led to the Secession in W. Ferguson, *Scotland 1689 to the Present* (Edinburgh: Oliver and Boyd, 1968), 116-26.

¹² Ker, *Kilwinning*, 69.

¹³ The sermon was reported in Alexander Fergusson, *A Warning relating to the present Schism in the Church of Scotland* (1759), 4.

one of the Seceders' principal grievances – had been a traditional feature of the Reformed church in Scotland until its abolition in 1690. Why was lay patronage only now such an offence to the Reformed tradition? Moreover, the established Kirk was pure in doctrine. The current establishment had 'never adopted any doctrine contrary to the Confession of Faith, nor countenanced any such doctrines in its members.' The grounds on which the Seceders had broken with the Kirk amounted to no more than a 'hypocritical affectation' of religious purity.¹⁴

Fergusson's pamphlet in its turn provoked a reply, ostensibly from a Paisley weaver called David McLerie, whose name appeared on a pamphlet entitled *Ignorance, falsehood and malice exposed: or, remarks upon a pamphlet, intituled A warning etc Read by Mr Alexander Ferguson to his congregation at Kilwinning.*¹⁵ Nevertheless, it seems that nobody was taken in by this piece of presumption from a weaver. In his own pugnacious reply to *Ignorance, malice and falsehood*, Fergusson noted that 'Mr Ellis is generally, and justly thought the author... But with a candour, equal to the honesty of David McLerie, a weaver, and one of his followers (who sets his name to it), he would make it pass for his.'¹⁶ McLerie, or Ellis, had taken Fergusson to task on the status of the Westminster Confession. Its standing within the Kirk was not what it had formerly been – and should still be. No longer was it held 'as a test of orthodoxy', but merely as 'a bond of union'. Indeed, the Seceder reckoned that a 'bare adherence' to a mere form, on the part of the Kirk's ministers would 'not prove the adherers to be sound in the faith.'¹⁷

¹⁴ *Ibid.*, 4-5, 8.

¹⁵ [David McLerie?], *Ignorance, falsehood and malice exposed: or, remarks upon a pamphlet, intituled A Warning etc Read by Mr Alexander Ferguson to his congregation at Kilwinning. Being a letter from a Seceder in P-y to his friend in K-w-g* (Glasgow, 1759).

¹⁶ Alexander Fergusson, *A display of the Act and Testimony published by Mr Ebenezer Erskine and his Associates who separated from the Church of Scotland in the year 1734* (Glasgow, 1761), 3.

¹⁷ [McLerie?], *Ignorance, falsehood and malice*, 12.

Combative and dismissive of their schismatical excesses, Fergusson made no attempt to woo the Calvinist hardliners of the Secession. Quite the reverse, for he reinforced their anxieties that the Kirk establishment was harsher on theological positions which pushed the predestinarian logic of Calvinism to its limits than on those which carried the tincture of Arminian concession. For example, in his first pamphlet, *Warning relating to the present schism*, Fergusson accused the Seceders of holding antinomian beliefs, which had ‘a direct tendency to destroy all the obligations of morality, or good works.’¹⁸ In his second pamphlet, *A Display of the Act and Testimony* (1761), Fergusson set out in greater detail the ‘antinomian errors’ of the Seceders, including their revival of the Auchterarder creed – ‘that there is no occasion to forsake sin in order to come to Christ’ – and other similarly objectionable opinions, such as the view that believers were not under the law. In addition, challenged the Seceders on various theological points, including their contention that it was consistent with God’s justice that more of mankind were doomed than saved, and questioned how far the doctrinal positions adopted by the Seceders were ‘consistent with the amiable and encouraging representations God has given of his goodness, holiness and justice; of his love to mankind; of his unwillingness that any should perish; and of his willingness that all men should come to the knowledge of the truth and be saved.’ On the other hand, Fergusson also engaged in a defence of the theological teachings of Professor John Simson (1667-1740), his own controversially heterodox teacher of divinity at Glasgow University, whose influential career within had provoked considerable Secessionist ire. There was also the troubling matter of Fergusson’s ambiguous and less-than-resounding endorsement of the Westminster Confession. Fergusson defended the Church from the Seceders’ charge that it was lax

¹⁸ Fergusson, *Warning*, 13.

on doctrine by demonstrating how the Westminster Confession provided a safeguard against heterodoxy and a means of maintaining orthodoxy. However, Fergusson's peculiar form of words seemed to raise doubts about his own orthodoxy: 'As to doctrine, if the Confession of Faith is sound, [the Kirk] cannot be corrupt in it, for all who admitted members, are obliged by Acts of Parliament, and Assembly, to sign it; and they do sign it.'¹⁹

This curious evasion did not pass unnoticed. McLerie answered Fergusson in a further pamphlet entitled *The clergy-man corrected by the weaver* (1761). McLerie – or his ventriloquist, Ellis – got to the nub of Fergusson's position on the Westminster Confession. Is the signing of the Confession, the Seceder asked, 'an infallible preservative against perverting the truths in it?' Indeed, Fergusson's critic suggested that a perceptive reader of Fergusson's pamphlet might conclude 'that you, by signing the Confession, have imagined that you have got out a licence to impugn the doctrines contained in it'. Adopting the persona of the blunt mechanic, Ellis taunted Fergusson with his betrayal of the doctrinal professions made at his entrance into the ministry: 'a fig for your signing of the Confession of Faith, what is become of your adherence to it now?' This was because Ellis recognised in Fergusson 'a true Simsonian', one who had 'espoused' all the errors of his teacher 'by the lump'. Far from exonerating the Kirk from the criticisms levelled at it by the Seceders, Fergusson had put forward ultra-liberal positions on doctrine 'as sap the very foundations of Christianity'.²⁰

As Fergusson grew older and more infirm he had a succession of assistants (including William McGill, himself later accused of liberal heresies when a minister

¹⁹ Fergusson, *Display of the Act and Testimony*, 18, 21, 24, 31-2.

²⁰ David McLerie, *The Clergy-man corrected by the Weaver; in a letter from David McLerie, weaver in Paisley, to the Revd Mr Alexander Ferguson, minister of the gospel in Kilwinning* (Glasgow, 1661 [ie, 1761]), ii, 11, 14, 17.

in Ayr)²¹ who took charge of his parish duties, and to whom he paid the full ministerial stipend. Nevertheless, the aged Fergusson was not done with religious controversy. Rumours abounded about what the ‘old light’ conservative, the Reverend John Adam (1720-92),²² the conservative minister of nearby West Kilbride, was saying about his more liberal new light colleagues, about Fergusson in particular. Publication of Adam’s sermon delivered at the opening of the Synod of Glasgow and Ayr on 9 April 1765, proved a mighty irritant. Adam’s sermon, entitled *How a minister should approve himself unto God*, was replete with innuendo and aspersion. It set out the various character failings to which ministers were prone, and needed to avoid - unseemly conversation and pursuits, lack of diligence, reverence and solemnity – but dwelt at some length, and in pointed, though apparently general, terms, about ministers who lacked ‘heart affection’ for the religious truths they were meant to propagate, or who omitted to preach about the core doctrines of Calvinism. In pulpits ‘where the peculiar doctrines of the gospel are some of them never, and others but seldom and very lightly touched,’ wondered Adam, ‘is there not reason to suspect, that a just esteem of the gospel revelation is wanting?’ Such ministers might well ‘fall under an aggravated condemnation, for acting a part so unworthy and hypocritical’. Was there, perhaps, too much emphasis in certain quarters on God’s mercy, at the expense of divine justice and punishment? Similarly, preaching about Christ needed to be directed towards ‘the covenant of grace ratified in his blood’, for it was ‘by no means sufficient, that we speak in general of the blessed Jesus, the Saviour of the world’; and ministers also needed to emphasise more clearly in their preaching mankind’s ‘polluted and guilty’ state. At two points Adam moved from coded insinuation to an open display of ecclesiastical partisanship. First, he singled

²¹ *Fasti*, III, 12.

²² *Ibid.*, III, 202.

out for condemnation the English Dissenting theologian John Taylor of Norwich (1694-1761), much admired by theologically advanced Moderates for his radical, and decidedly non-Calvinist, reinterpretation of scripture²³ (in honour of which Taylor had received the degree of D.D. from the University of Glasgow in 1756). Second, he scolded those within the Kirk who were 'bigotedly fond of patronage'. According to Adam, patronage was not simply an offence against the principles of sound ecclesiastical polity, but was a means of introducing into the Kirk 'too many such shepherds, as God denounces a woe against.' All that sound Calvinist ministers could do was to exercise 'extreme caution in licensing probationers', which was 'the only relief we at present have (though by no means a sufficient relief) under the Patronage Act'.²⁴

Adam's published sermon sent the old minister of Kilwinning into an apoplexy of outrage, in which prudence and discretion evaporated. Fergusson could not resist rebuking his junior colleague for his effrontery, sending a lengthy private letter to Adam, which took him to task for his presumption and set out his own errors. In the course of the letter Fergusson also made manifest his own attitude to doctrine. The matter might have remained a matter of private gossip among clerical colleagues had Fergusson not insisted on sending a copy of his letter in the autumn of 1766 to the *Scots Magazine* for publication under the assumed initials A.B. Not only was Ferguson's authorship not disclosed, nor did the letter identify the minister being criticised. At first the *Scots Magazine* declined to publish the letter, but began to tantalise its readership with allusions to the mysterious letter it had received. First the magazine put a note on the cover of its September issue, explaining that it had

²³ John Taylor, *The scripture-doctrine of original sin* (1740: 4th edn., London, 1767).

²⁴ John Adam, *How a minister should approve himself unto God. A sermon preached at the opening of the Synod in the High Church of Glasgow, on Tuesday, April 9, 1765* (Glasgow, 1765), 6, 15, 18-21, 23, 34-5.

received the letter, but its criticisms were personal and seemed to discuss a pamphlet which would be unknown to most of its readers. However, the cover of the October magazine carried some passages from the letter, and asked the magazine's readership whether it was worth inserting the piece within the magazine itself. The November issue carried the letter on its cover, but this was not enough for Fergusson who wrote again to the magazine, identifying himself to the editor, and urging that the letter be included in the body of the magazine. Meanwhile, other correspondents had written to that the magazine was right not to publish the letter. Nevertheless, the topic of the letter was clearly a controversial one, and the *Scots Magazine* – notwithstanding its earlier coyness and the anxieties of some of its readers - printed A.B.'s letter in full in the April 1767 issue, with a further Appendix by the author of the letter and an account by the magazine of this curious publication history.²⁵

A.B.'s pseudonymous letter opened by justifying his reprimand of a fellow minister:

Dear Brother,

They that take upon them to censure their brethren's opinions and sermons, do at the same time give them a right to censure theirs. This is your case...I have been told you said you observed a sentiment peculiar to my parish, viz. that God had implanted in our natures the seeds of goodness and virtue. This looks to me as though you thought that sentiment an error. But my parish will glory in it as a sentiment that doth honour to God...No sentiment can be more unworthy of God than to think that he creates

²⁵ *Scots Magazine* 29 (Apr., 1767), 169-75; 'Introduction to the Affair relative to Mr Ferguson', in *The Grounds of the Process set on foot by the Synod of Glasgow and Ayr, against Mr Alexander Ferguson, Minister at Kilwinning* (Glasgow, 1769).

intelligent creatures sinners. He makes us upright, and we make ourselves sinners.

Having established his distance from a pessimistically narrow interpretation of the fall of man, A.B. then went on to scold his neighbour for remarks he was alleged to have made on the issue of subscription: 'I have been also told, you said you would pronounce them villains who had signed the Confession of Faith, and did not believe every proposition.' A.B. described this as a 'censure unworthy of a Christian', and fancied his colleague had 'learned it from your leader' – presumably meaning the influential orthodox satirist Witherspoon, formerly a minister in nearby Beith, and at this stage only a few miles further away in Paisley – 'who has in a printed sermon asserted that we are not to think charitably of such as have opinions or principles different from ours.' Fortunately, the apostle Paul, who, according to A.B. 'was a better divine than either of you,' taught a 'quite contrary doctrine.' After all, such a cramped approach to subscription would take away the 'natural right of private judgment, and the invaluable privilege of inquiring after truth, and of improving in the knowledge of it', possession of which distinguished – or should distinguish – Protestants from Catholics.²⁶

Then A.B. turned to his colleague's synodical sermon, making manifest his own displeasure at his colleague's harsh words for Taylor. Where Adam and the old lights within the Kirk regarded Taylor as an arch-heretic, A.B. contended that Taylor had 'studied the scriptures with as great attention, as any man in the Christian church

²⁶ *Scots Magazine* 29 (Apr., 1767), 171-5.

since the apostles.’ Whereas his colleague relied upon ‘systems’ in divinity, A.B. made clear his own preference for ‘scripture and common sense’.²⁷

In an appendix to the letter A.B. set out his principles on subscription. ‘No human government’, he contended, had the authority to impose subscription in matters of faith ‘to a composition of fallible men, but in so far as it is agreeable to the scripture.’ No ‘human composure’, he insisted, ought ever to be on an ‘equal footing’ with the scriptures. In any case, men had a natural right of private judgment and freedom of inquiry. More particularly, even the Westminster Assembly had acknowledged that all synods or councils since the apostolic era were capable of error and fell short of the sort of infallibility now claimed for the Westminster Assembly itself by hardline guardians of subscription within the Kirk. The appendix concluded with A.B.’s understanding of what the Scots Parliament had aimed at when enacting subscription to the Confession in 1690. It was not intended to bring about ‘an uniformity in principle’, which A.B. thought an obvious nonsense, for men’s minds were quite obviously framed in different ways, and such indeed was the will of God. Therefore, A.B. concluded, the legislation of 1690 was meant only ‘as a test of conformity to the Presbyterian establishment’, which was then in its infancy and in need of such safeguards.²⁸

A flurry of anonymous letters to the *Scots Magazine* stoked the controversy. The pseudonymous letter of F, dated 15 January 1767, wondered whether, on A.B.’s principles, it would be possible to subscribe the canons of the Council of Trent or even the Koran. After all, there was something in each of those ‘agreeable’ to the Christian scriptures. Worse, any qualifications of this sort were not expressed at the time of subscription to the Westminster Confession, which might have entailed some

²⁷ *Ibid.*, 173.

²⁸ *Ibid.*, 175.

‘inconvenience’ for an entrant into the ministry. Therefore, to all intents and purposes, A.B.’s qualifications were really a kind of ‘mental reservation’: ‘So the Jesuits’ morals allow. But it is a new thing for a Protestant minister to avow’. It was unsurprising to F that A.B. was a ‘zealous friend of patronage’, for lay patronage and ‘subdolous and Jesuitical subscription, with such mental reservation, as we have seen’ provided the ‘two doors’ by which heretics might enter the ministry. F was unconvinced by A.B.’s plea for natural rights, for these had no bearing upon the matter of ministerial subscription. If a man did not believe the doctrine contained in the Westminster Confession, he did not suffer persecution; it was simply the case that he could not hold office in the church. Otherwise, though unqualified for the ministry, such an eighteenth-century Scot was free to ‘enjoy his natural right of private judgment, without molestation’.²⁹ Similar arguments surfaced in an anonymous letter from Aberdeen, dated 9 February 1767. The anonymous Aberdonian castigated A.B. as ‘a friend to double meaning’, his mendacious approach to confessional subscription laying him ‘under the cruel necessity of patronizing deceit and perfidy.’ The letter from Aberdeen also directly criticised A.B. for a serious departure from Calvinist orthodoxy, namely the notion ‘that God creates every individual of mankind as upright as Adam in a state of innocence, and that all the sins they commit are owing to their abuse of these powers and faculties with which they are naturally endowed, and not to any inborn corruption or depravity of heart.’ This ran directly contrary to the tenets set out in chapter 6, sections 3 and 4, and chapter 9, section 3, of the Westminster Confession.³⁰

Nevertheless, some Moderate correspondents struck back in defence of A.B. In a letter dated 17 August 1767, the pseudonymous S.D. questioned whether A.B.

²⁹ F. , ‘To the author of the Scots Magazine, 15 Jan. 1767’, in *Grounds of the process*, 18-24.

³⁰ ‘Letter from Aberdeen, 9 Feb. 1767’, in *Grounds of the process*, 24-34.

had felt as he now did at the time when he subscribed the Confession at his entrance to the ministry. Could Mr F. prove – or did he merely jump to the unwarranted conclusion – that when A.B. subscribed ‘he was conscious to himself of expressing one thing outwardly, and having quite the contrary in his heart?’ It was, after all, quite a different matter for one’s theological opinions to develop during the course of one’s ministry. If that were the case, then A.B. was not himself guilty of mental reservation. Moreover, S.D. pointed out that the terms of confessional subscription laid down by the Act of Assembly in 1711 – which required swearing to the effect that the whole doctrine of the Confession was the word of God - were inconsistent with the Westminster Confession itself, which pointed out that all councils and synods since the time of the apostles could err. But there was no hint in the terms of subscription that the Westminster Assembly was as fallible as its own articles declared it to be, unless, S.D. suggested cheekily, the Westminster divines were themselves engaging in mental reservation, a practice, indeed, which critics of A.B. condemned. With considerable relish, S.D. set out the state of mind of an entrant to the ministry wrestling with this logical conundrum:

I profess to believe [the Westminster Confession] to be, at the same time, fallible and infallible; and if, unmindful of the former of these qualities which belong to it, I say that it is wholly and absolutely the truth of God, I do unquestionably put it, so far as it has treated of faith and manners, upon a footing with the scriptures. These things may justly create a doubt in the mind, even of an honest man...³¹

³¹ ‘Letter of S.D., 17 Aug. 1767’, in *Grounds of Process*, 34-41.

The same argument was used by the pseudonymous Philanthropos in a letter dated 31 October 1767. If the scriptures were ‘written with the finger of God’ and ‘sealed with the blood of Jesus’, and the Westminster Confession itself raised the errancy of councils and synods, then the Confession ought to be understood primarily as an aid to the understanding of scripture; however, if ‘our reverence and submission’ were carried any further, then there was a danger of questioning the sufficiency of God’s own word and the terms of the Confession itself.³²

Quite apart from this minor sensation in the press, the machinery of the church courts also began to creak into action. On 13 October 1767 the Synod of Glasgow and Ayr met at Irvine, and discussed the letter from one minister to another in the *Scots Magazine* ‘justifying the grossest dishonesty in the subscription of ministers to the Confession of Faith’. Nobody, it transpired, approved of the opinions set out in the letter or appendix. However, the matter was discussed in a highly impersonal manner. No names were named; though clearly names were known. This prudent reticence allowed the Synod to deal with the matter by way of pious generalities, expressing its ‘disapprobation and detestation of all disingenuity or equivocation in subscribing the Confession of Faith’ and called on its members ‘to oppose and discountenance such pernicious principles’.³³ Nevertheless, according to the *Scots Magazine*, the next morning a member of the laity, James Macconnel (b. 1706), decided to name names, and thus ‘take upon himself all the odium, and...run the risk of all the other dangers which had been so terrible to the reverend clergy.’³⁴ Yet again Fergusson found himself apparently challenged by a would-be heresy-hunter from the lower orders. Macconnel, described by one contemporary commentator as ‘an obscure, illiterate

³² ‘Letter of Philanthropos, 31 Oct., 1767’, in *Grounds of Process*, 41-6.

³³ National Records of Scotland [NRS], Records of the Synod of Glasgow and Ayr, CH 2/464/4/54.

³⁴ *Scots Magazine* 29 (Oct., 1767), 554.

man',³⁵ had formerly been a soldier, and was now the town-drummer in Beith, a village a few miles from Kilwinning.³⁶ Was Macconnel merely a stalking horse for a quietly seething cleric? Certainly, Wodrow, Fergusson's neighbouring colleague and new light ally, believed that the 'common drummer' was 'advised and directed as was thought by Wotherspoon [sic] and some of the Glasgow and Dumbarton clergy'.³⁷ Furthermore, the *Scots Magazine* spotted the oddity of Macconnel's having emerged from the obscurity of a village over ten miles away from Irvine to make his accusations, noting that it was either 'curiosity, or zeal, that prompted this man to attend the synod; for he was not a member.'³⁸ One contemporary observer from the new light side of the debate, John Graham, the minister of the nearby parish of Dunlop, reckoned that Macconnel had been used 'as the tool of a faction', the orthodox members of the Synod having been wary of initiating an action against Fergusson which might not gain sufficient support to proceed. The 'very circumstance' of Macconnel's 'offering a long libel' to the Synod on the morning after the debate made people wonder how 'probable' it was that 'an illiterate man could have prepared such a paper in so very short a time', not least as the document

³⁵ [John Graham], *The religious establishment in Scotland examined upon Protestant principles* (London, 1771), 10.

³⁶ For Macconnel, see entry on 'Beith' in *New Statistical Account of Scotland*, 15 vols (Edinburgh, 1845), V, 587 fn. According to the entry, Macconnel was also, apparently, a teacher (of sorts, presumably), constable and sheriff-officer, as well as having 'a turn for polemical divinity'.

³⁷ Wodrow to Kenrick, Jan. 25, 1769, W-K (45). This was also the view of the Reverend John Mitchell (b. 1768), born and brought up in Beith where his father had been a Seceding minister. It should also be noted, with reference to the career of Fergusson, that Mitchell's mother was the sister of the Reverend James Ellice (or Alice) of Paisley. According to Mitchell's somewhat inaccurate account composed in 1842, Macconnel had been 'acting, as it was supposed, under the guidance and at the instigation of the celebrated Dr. Witherspoon, at that time minister of Beith, and who adopted this method, it may be supposed, either to pour contempt upon the errorist, or to screen himself from the odium which, especially at that time, would have attached to the measure of libelling a neighbouring clergyman'. Mitchell, 'Memories of Ayrshire about 1780', *Miscellany of the Scottish History Society VI* edited by W.K. Dickson 3rd ser. (Edinburgh: Scottish History Society, 1939), 278. However, Mitchell had made a mistake about Witherspoon, who had been minister of Beith between 1744 and 1757, but had, at that stage, not moved far, to Paisley in the adjacent county of Renfrewshire. Witherspoon only resigned his charge in May 1768 immediately prior to his departure for the College of New Jersey at Princeton, and it seems that until then he continued to make mischief in the district, though whether the supposedly illiterate Macconnel was his creature or independently motivated remains an open question.

³⁸ *Scots Magazine* (Oct. 1767), 554.

‘making its appearance at this crisis, had all the air of being precomposed, and reserved for this very occasion.’ Indeed, this seemingly delegated prosecution ‘brought many in mind of the story of Calvin and Servetus.’³⁹ According to the records of the Synod itself, Alexander Nisbet, Fergusson’s lawyer, who had appeared at the Synod on the morning of 14 October armed with a typically blustering letter from his client, accused Witherspoon himself of having brought Fergusson’s name to the Synod.⁴⁰ Notwithstanding the fact that Macconnel expressly named Fergusson in the papers he delivered to the Synod, its members were reluctant to surrender their hard-won platitudinous consensus, and decided that the matter raised by the drummer did not belong in the Synod’s jurisdiction. Any such particular complaint ought to have been lodged at a lower court of the Kirk, at the appropriate Presbytery, in this case the Presbytery of Irvine, to whom the complaint was now referred, though not without some dissent.⁴¹

The Fabian tactics of the clerical moderates continued to thwart the process. A full year later Macconnel appealed to the Synod of Glasgow and Ayr on 11 October 1768 that the Presbytery of Irvine ‘had made repeated delays’ in the prosecution of the case. It seems that Macconnel had presented his paper, ‘A libel against Mr Ferguson’, to the Presbytery in November 1767. The Presbytery had then rejected the libel on the grounds that Macconnel had not followed the due procedures of the Kirk, which required anyone accusing a minister before a presbytery, first to speak with the minister concerned, and also to take soundings from other ministers in the Presbytery. These procedures, Macconnel conceded, he had not followed. However, Macconnel was undaunted, returning to the Presbytery in February, his previous procedural omissions now rectified. The Presbytery ordered it to lie on the table until its next

³⁹ [Graham], *Religious Establishment*, 11.

⁴⁰ NRS CH 2/464/4/55.

⁴¹ *Scots Magazine* 29 (Oct., 1767), 554.

meeting. Nothing was done either at the Presbytery's March meeting, or at its May meeting. An irritated Macconnel appeared at their July meeting urging due haste with his libel. The clerics now decided that Macconnel was an 'improper' prosecutor, and decided to take control of the case themselves. Thoroughly condescending in their attitude towards the Beith drummer, the Presbytery announced that they considered it 'a dangerous thing, and seemingly contrary to the Forms of Process, to allow an illiterate man, and one not immediately concerned, to libel a minister, especially for heresy, which requires prudence and learning, as much as zeal' and had therefore 'reserved to themselves liberty, to apply these considerations afterwards to the present case.' The Presbytery appointed a committee of six to take this matter under consideration, and to meet Fergusson should that be necessary. The Committee met, but discovered that Fergusson was 'in such a state of health, as not to be able to bear any long conference with them', though he desired another meeting of the committee, which the Presbytery granted at the end of August, which in turn had provoked Macconnel's appeal to the Synod against the Presbytery's repeated delays.⁴²

The Synod at its meeting in October 1768 now investigated the proceedings of the lower court. Had the Presbytery of Irvine been dilatory, if not downright obstructive, or had it exercised due caution in a matter of great moment? Or were there mitigating factors beyond the control of the Presbytery, namely Fergusson's great age and infirmity, not forgetting 'the character and station of the prosecutor'? But should the Synod now take matters into its own hands and launch its own investigation of Fergusson's alleged heresy? The debates of the Synod now grew 'much warmer'. There appeared to be three options. Should the Synod simply remit the affair back to the Presbytery? Or, second, should the Synod take a stand, condemn

⁴² NRS, Records of the Presbytery of Irvine, CH 2/197/6/170, 172, 174-5, 178-80; *Scots Magazine* 30 (October, 1768), 556-7.

the letter and appendix published in the *Scots Magazine*, but dismiss any further prosecution of Fergusson? Or, third, should the Synod take the prosecution of Fergusson into its own hands? The third option was chosen, though – significantly – with ‘a majority of the ministers’ (as opposed to lay elders) on the synod against the irregular course adopted, including leading Moderates such as Principal William Leechman of Glasgow University, and the liberal ministers of Ayr, William McGill and William Dalrymple. Notwithstanding an appeal from the Presbytery of Irvine to the General Assembly against the Synod’s unconstitutional manner of proceeding, the Synod appointed a committee of twenty ministers and five or six lay elders to investigate the matter, with the power to summon Fergusson.⁴³

The Synod’s special committee met on various occasions during the autumn of 1768. At an early stage – on 7 November - Macconnel appeared before the committee, and yet again was deemed an ‘improper prosecutor’ in such a cause. The committee took matters into its own hands, and set up a sub-committee of five ministers to frame a new libel, a draft of which was presented to the full committee on 14 November. On 29 November a letter from Fergusson was submitted to the committee. Here Fergusson announced his decision to appeal to the assembly against the process, not only as a principled objection to heresy-hunting, which was to usurp from God himself ‘the difficult work of rooting out the tares from among the wheat’, but also on the grounds of strict presbyterian legality against the Synod’s decision to usurp a procedure which properly fell within the jurisdiction of the Presbytery. On 29 November the Presbytery of Irvine prohibited all its members from assisting – or even acknowledging - the work of the Synod’s investigating committee, as the Presbytery perceived the committee’s activities as ‘a flagrant incroachment on the rights of the

⁴³ NRS CH 2/464/4/62-5; *Scots Magazine* 30 (Oct. 1768), 557-8.

presbytery, and the constitution of the Church of Scotland'. Thus, when the committee next met on 20 December 1768, none of its witnesses appeared. On 21 December the committee now began to investigate the validity of the reasons for non-compearance given by the absent witnesses. On 3 January 1769 another batch of witnesses failed to appear.⁴⁴

When the Synod of Glasgow and Ayr met on 11 April 1769, its own attendance was fuller than in previous years on account of the high drama of the Fergusson affair. Notwithstanding the big theological issues at stake, the parties in the Synod soon fell to lengthy procedural wrangling. Eventually, a compromise was reached. The report of the committee was read and approved. The Synod not only expressed its 'detestation and abhorrence' of 'every doctrine and opinion that is contrary to or inconsistent with' the cardinal tenets of the Confession, but also condemned 'every opinion that tends to promote or encourage dissimulation or disingenuity in signing the said confession'. Nevertheless, the Synod also decided – 'in respect of Mr Fergusson's great age and infirmities, and other difficulties attending his peculiar situation' – to remit the cause back to the Presbytery of Irvine 'to take such prudent measures as may appear to them to be most for edification'. In return, the Presbytery of Irvine, it was agreed, would drop its own complaints and appeals to the Assembly.⁴⁵

All the while Fergusson's reputation and liberal cast of theology took a battering in the press. In a lengthy letter to the *Scots Magazine*, dated January 1768, which ran over twelve double-columned pages, the pseudonymous Philalethes – the front of the orthodox minister of Dundonald, the Reverend Thomas Walker (1704-

⁴⁴ *Scots Magazine* 30 (Nov. 1768), 610-12, (Dec. 1768), 669-70; NRS CH 2/197/6/182-3.

⁴⁵ NRS CH 2/464/4/71; *Scots Magazine* 31 (Apr. 1769), 220-2.

80),⁴⁶ who happened to be Witherspoon's uncle⁴⁷ – dealt with both Fergusson and his defenders. According to Walker, Fergusson's mode of subscription was so 'obviously deceitful, that even a Jesuit would be ashamed openly to espouse it.' Nor did Walker have any time for the specious arguments put forward by S.D. and Philanthropos about contradictions between the Westminster Confession's own statement on the errancy of councils of the church and the requirements placed on entrants to the ministry of the Kirk, for 'by saying ALL may err, and MANY have erred, they plainly make a distinction...All are included in the first, but all are not included in the second assertion. So that there is no necessity of applying the second assertion to any particular assembly.' But such were the devious methods required to slip Taylor's Socinian theology into the bosom of the Kirk. Walker was in no doubt that the sly and equivocal approach to subscription of Fergusson and his defenders was not – as was sometimes pretended, a minor matter of tidying up loose ends at the fringes of theology, but rather pertained to the central core of Christian belief, what indeed ultimately separated Christians from polytheistic pagans:

If there is anything in revealed religion more than that the philosophy of the heathens could suggest, it surely is, that mankind being now in a fallen state, can only be saved by the sacrifice of the Son of God in our stead, and by the influence of the Spirit of God in regenerating our corrupt hearts, which Son and Spirit are not different and inferior Gods, but the same in substance with the Father....And to teach the contrary of all this, so far from being indifferent

⁴⁶ *Fasti*, III, 36.

⁴⁷ Walker's sister was Witherspoon's mother. See *Fasti*, I, 349. I am indebted to Rick Sher for drawing my attention to the relationship of Walker and Witherspoon.

speculations, that may be indulged with safety to the substance of the doctrine, is really to overturn the very foundations, and to substitute a quite different religion in the place of that which hath hitherto obtained, and been established among us.

Here, as elsewhere in his writings, Walker posed as a reasonable man of genuine moderation, but one who was still upset from being duped and gulled by so-called Moderates, whom he now saw through not only as dangerous revisionists within the Calvinist tradition, but as neo-pagan critics of Christianity itself. Where one doctrine ‘represents mankind as sunk in sin and misery, needing a Saviour and a Sanctifier’ and the other exhibits mankind ‘in a state of integrity, where there is no necessity for either the one or the other’, then these are not simply variations within a religious tradition, but ‘quite different religions’.⁴⁸

The debate in the *Scots Magazine* had also overspilled into the *Glasgow Journal*, where the moderate Philanthropos was answered by the conservative Philorthodoxus.⁴⁹ The latter extended his critique of Fergusson’s heresies and hypocrisies in a pamphlet entitled *Kilwinning divinity weighed and found wanting; or, the grand secret of the new Kilwinning lodge, concerning subscription to the Confession of Faith* (1768), which exploited Kilwinning’s Masonic associations to satirical effect. Not only did Philorthodoxus condemn ‘evasion’, ‘sophism’ and ‘subterfuge’ in subscribing the Confession, but also attacked the Moderate rehabilitation of Arian, Socinian and Arminian heresies. These dangerous and offensive heresies bien-pensant opinion in the Kirk now viewed complacently as ‘the innocent speculations of learned and ingenious enquirers after truth.’ But

⁴⁸ *Scots Magazine* 30 (Jan. 1768), 9-20.

⁴⁹ ‘Letter of Philanthropos’, *Glasgow Journal*, no. 1372 (5-12 Nov., 1767); ‘Letter of Philorthodoxus’, *Glasgow Journal*, no. 1379 (24-31 Dec., 1767).

Philorthodoxus knew better.⁵⁰ In 1769 there appeared in Glasgow an anthology of the various letters to the Scots Magazine for and against Fergusson, entitled *The grounds of the process set on foot by the Synod of Glasgow and Ayr, against Mr Alexander Ferguson*. It also carried an anonymous 'Introduction', which far from providing a neutral survey of the Fergusson affair, was an unqualified denunciation of ministers who managed to 'creep in unawares' to the church, their 'most cowardly and hypocritical dissimulation', and their 'clandestine way' of 'smuggling' into the church 'heretical sentiments' quite at variance with the beliefs which it and its ministers supposedly upheld. As far as the editor of the anthology was concerned – and his arguments resembled very closely indeed those of Walker – Fergusson and his fellow 'disciples of Taylor' were not simply attempting to effect minor changes at the margins of Kirk doctrine, whether in 'particular phrases, or modes of expression', but to alter its very substance.⁵¹

Notwithstanding the gravity of such allegations, the Presbytery of Irvine decided to take no further action against Fergusson, and the process lapsed. Soon after, Fergusson died on 16 February 1770.⁵² In the meantime his erstwhile opponent John Adam had moved, prudently perhaps, in 1769 to the New or Middle Parish in Greenock, at some remove from the turbulence of the Presbytery of Irvine.⁵³ However, the affair did not end with Fergusson's convenient death. Indeed, it took on

⁵⁰ *Kilwinning divinity weighed and found wanting; or, the grand secret of the new Kilwinning lodge, concerning subscription to the Confession of Faith* (Glasgow, 1768), 6, 13, 15, 17.

⁵¹ 'Introduction to the affair relative to Mr Ferguson', *Grounds of Process*, 1-5. The 'Introduction' was also reprinted in the *Scots Magazine* 31 (March 1769), 151-3.

⁵² NRS CH 2/197/6/212-13, 222.

⁵³ *Fasti*, III, 202.

new life under the auspices of the Reverend John Graham (1732-1815)⁵⁴, who was the minister of nearby Dunlop between 1763 until 1779, when he too moved out of the hot ecclesiastical contestation of north Ayrshire to Kirkinner in Galloway. In 1771 Graham launched a posthumous defence of Fergusson and his approach to subscription in his anonymous work, *The religious establishment in Scotland examined upon Protestant principles* (1771). Mischievously, Graham suggested that Fergusson's real offence in his letter had been to suggest that St. Paul was a better theologian than Dr. Witherspoon. Indeed, Graham denied that there was any 'dissimulation' or 'mental reservation' in Fergusson's position. There were two reasons for this. First, 'private judgment' was 'one of those natural rights of which we cannot, even though we were willing, divest ourselves'. In the second place, 'scripture' was 'the only infallible standard of faith', and it could never be the meaning of any Act of Parliament or Assembly to subvert that fact. However, it was no wonder that the rigmarole of subscription gave rise to such difficulties; for confessions, argued Graham, were an oppressive hangover from Catholicism which restricted the Protestant freedom of ministers to pursue religious knowledge. Instead ministers were trapped in an iron cage inherited from the authoritarian practices of Rome. Strict subscription to confessional formulae composed a century past constituted an infringement upon the most cherished principles of the Reformation. Was Scotland, a so-called Protestant country, to remain stuck in a quasi-Catholic rut of confessional tyranny? Obviously, old light conservatives – nominal Protestants at least as far as the Protestant principles of religious freedom were concerned - could not be trusted to dismantle the structures of post-Catholic oppression. Graham called upon new lights to complete the unfinished business of the Reformation. Confessions,

⁵⁴ *Ibid.*, II, 365-6; III, 92.

argued Graham, ought either to be amended in the wake of developments in theological knowledge, or, better still, abolished altogether.⁵⁵

The debate was now joined by the supposedly illiterate town drummer of Beith, James Macconnel, who published a pamphlet under his name, or, more probably, had a pamphlet published under his name, in 1772. Macconnel – or his ghost-writer – denied that he had brought his accusations against Fergusson as the cat's paw of Witherspoon. Returning to the 'faults and blemishes' of the deceased clergyman was a 'disagreeable task', but a necessary one, for the Kirk was under serious threat from a cunning and scarcely visible foe, 'secret lurking enemies' who 'appear and move out of their holes like worms of the earth'. Macconnel, or his puppeteers, explicitly linked the prevailing divisions within the Kirk over lay patronage to the more chilling issue of heresy. It was hard to allay the suspicion that support for the former 'must arise from some other ends and designs by patronage than only the providing for the maintenance of some useless ministers'. Perhaps lay patronage was an open sesame to the intrusion of heretics within the Kirk who aimed at the eventual overthrow of its system of discipline, its constitution and its doctrines. Indeed, the Macconnel camp pointed out exactly which doctrines would vanish from the confession when the heretics had purged it of the doctrines they disliked. The Kirk would cease to uphold a Calvinist account of salvation or the Athanasian version of the Trinity:

These especially you may depend on will be left out, That
Adam the first man, and root of all mankind, was appointed
by Divine Wisdom, a federal head to represent his race, in

⁵⁵ Graham, *Religious establishment*, 8, 71-5, 148-9, 157-60.

covenant with God, and that when he sinned in the first breach of the covenant, all mankind sinned in him. And next, That God of his mere good-will and pleasure only, and to illustrate his grace, did make choice of a certain number of mankind to be saved, and brought into a state of grace and salvation by his only son our Lord Jesus Christ...And we may also expect the leaving out of the equality of the second person of the Trinity, the glorious God our Saviour, with the Father, as if there were a subordination in the honour due to the godhead, in the divine persons manifested to be therein, in the unity of nature or essence.

The new lights, according to Macconnel, aimed ultimately at a Socinian Kirk.⁵⁶

Graham's work also provoked a robust response from Walker, who dwelt at length on the 'sinfulness of prevarication'. New light dissimulation was worse than that of the Jesuits; for, 'even the Jesuits themselves and all the Romish casuists, how dreadfully so ever some of them have corrupted the doctrine of morality, yet none of them have ventured to go your length. Even the Jesuitical doctrines of equivocation and mental reservation are only subtle contrivances to elude that obligation to speak truth which they own to be incumbent on us at all times'. Cleverly, Walker invoked the authority of Francis Hutcheson, notwithstanding his justification of lying *in extremis*, in whose writings he detected 'a manifest consciousness that there is a moral turpitude in speaking contrary to the sense of our own minds, considered absolutely, and without any regard to its consequences.' The Hutchesonian champions of moral

⁵⁶ James Macconnel, *Some Remarks on a book lately come abroad into this nation, intituled, The Religious Establishment of Scotland, examined on Protestant principles* (1772), 6, 10-12, 15, 19-20, 26.

virtue were confronted, it seems, with the awkward obstacle that Hutcheson himself found ‘dissimulation and disguises’ to be incompatible with ‘a virtuous disposition’.⁵⁷

Graham replied to Walker in a further work entitled *Subscription to human articles of faith examined* (1775). Here Graham worked hard to remove the slur of Socinianism which tainted the new light cause. Opposition to the terms of subscription was not a cunning manoeuvre to bring in heresy, but a right of free enquiry which staunch Calvinists and orthodox Trinitarians might also justly support as conferring on their fellows the full benefits of Protestantism. Indeed, he argued that there was nothing that detracted necessarily from Calvinism itself in wishing to loosen the bonds of subscription: ‘We may be Calvinists in the strictest sense, and yet maintain the scriptures to be supreme. We may believe every article of the Confession of Faith ourselves, and yet think it unwarrantable to impose our sense of things upon others.’ Perhaps it was the defenders of the Confession, the self-proclaimed orthodox, who were in reality the unscriptural heretics: to substitute the authority of the Confession for the authority of scripture was ‘supposing that revelation is imperfect’, while ‘to say that the doctrines essential to salvation are not revealed clearly is an aspersion upon Deity.’ Worse than that, perhaps, for eighteenth-century Scots at least, was Graham’s charge that to safeguard Calvinist doctrine with confessional subscription was to build a supposedly Protestant establishment on Popish foundations.⁵⁸

The Fergusson affair provides a snapshot of the Kirk in one, perhaps atypical, region of Scotland. The established church in Ayrshire and Renfrewshire was clearly

⁵⁷ Thomas Walker, *A Vindication of the Discipline and Constitutions of the Church of Scotland* (Edinburgh, 1774), 173-281, esp. 188, 194, 198. Cf. Hutcheson, *A system of moral philosophy* (1755: repr. 2 vols., London and New York: Continuum, 2005), II, 45-53, 131, 139.

⁵⁸ John Graham, *Subscription to human articles of faith examined* (London, 1775), 6, 9, 15.

divided between parties which differed not only over patronage, but also over matters of doctrine. In these counties patronage was not, as the current historiographical consensus identifies it, the exclusive, or even the most significant issue in dispute within the Kirk.⁵⁹ While old light ministers in this region made a connection between lay patronage and dissimulation in subscription, arguing that both were Trojan horses designed to admit Socinian heretics into the Kirk, they saw patronage largely as a means to an end, and perceived heterodoxy as the major threat to be confronted. In this particular locality a major gulf lay between liberal proponents of the need to adjust doctrine in the light of changed circumstances and a decidedly conservative - albeit clever and sophisticated - counter-Enlightenment. Again this finding sits awkwardly with the current portrayal of a broad-based enlightenment within the Church of Scotland which extended well beyond a recognised core among the Moderates to embrace – at least in some measure – the Kirk’s Popular-Evangelical grouping.⁶⁰ Clearly, this issue is far from exhausted,⁶¹ but in the interim it seems reasonable to conclude that during the third quarter of the eighteenth century the south-west hinterlands of Glasgow witnessed a substantive theological division within the Kirk between real and nominal Calvinists.

⁵⁹ F. Voges, ‘Moderate and Evangelical thinking in the later eighteenth century: differences and shared attitudes’, *Records of the Scottish Church History Society* 22:2 (1985).

⁶⁰ N. Landsman, ‘Presbyterians and provincial society: the Evangelical Enlightenment in the west of Scotland, 1740-1775’, in *Sociability and society in eighteenth-century Scotland*, edited by R. Sher and J. Dwyer (Edinburgh: Mercat Press, 1993), 194-209.

⁶¹ As this piece was being revised for publication, there appeared a striking new contribution to the discussion, L. Brekke, ‘Heretics in the pulpit, inquisitors in the pews: the Long Reformation and the Scottish Enlightenment’, *Eighteenth-Century Studies* 44:1 (2010), 79-98, which further disturbs the historiographical consensus.